



CHAPTER xliii.

An Act to prohibit the making by housing authorities of conditions as to the form of light heat power or energy to be supplied or used in certain cases in the limits of supply of the Commercial Gas Company and for other purposes.

A.D. 1933.
—

[18th July 1933.]

WHEREAS the Commercial Gas Company (in this Act referred to as "the Company") were incorporated by an Act passed in the year one thousand eight hundred and forty-seven and under the provisions of that Act and subsequent Acts the Company supply gas within the metropolitan boroughs of Bethnal Green Poplar and Stepney in the administrative county of London and parts of the county borough of West Ham :

And whereas the councils of the said metropolitan boroughs and county borough carry on electricity undertakings and are authorised to supply electricity for public and private purposes within their respective boroughs :

And whereas the said councils are the owners of and are developing certain housing estates in their respective boroughs under the provisions of the Housing Acts :

And whereas the tenants of houses on some of the said housing estates are precluded by the terms of their tenancy from obtaining a supply of gas for any purposes other than certain specified purposes and the tenants of

A.D. 1933. — houses on others of the said housing estates have been prevented by the terms of their tenancy from obtaining a supply of gas for any purposes :

And whereas it is inexpedient that the occupiers of houses erected at a cost which has been defrayed out of public funds should be prevented from obtaining a supply of gas or be restricted as to the purposes for which they may use gas supplied to them and that the Company should be hampered in carrying out the purposes for which they were incorporated and in developing their undertaking in the general interests of the inhabitants in their area of supply :

And whereas it is expedient that the provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Commercial Gas Act 1933.

Interpretation.

2. In this Act unless there is something in the subject or context repugnant to such construction the expression—

“ the Company ” means the Commercial Gas Company ;

“ the limits of supply ” means the limits within which the Company are for the time being authorised to supply gas ;

“ the housing authority ” means the council of any county county borough or metropolitan borough situate wholly or partly within the limits of supply.

Housing
authority
not to

3.—(1) The housing authority shall not in or in connection with the selling leasing letting or other disposal of any house shop office warehouse or other building

or any lands for the time being belonging or leased to them within the limits of supply— A.D. 1933.

(a) make or impose any term condition or restriction with respect to—

impose
restrictions
as to form
of light &c.
to be used
in houses.

(i) the form of light heat power or energy to be supplied to or used in any such house shop office warehouse or other building or on any such lands or in any building erected on any such lands; or

(ii) the taking from any particular local authority company body or person of any form of light heat power or energy; or

(b) give any preference or priority to any person on account of his taking or agreeing to take or subject to any prejudice or disadvantage any person not taking or not agreeing to take a supply of light heat power or energy of any particular form or from any particular local authority company body or person.

(2) Any such term condition or restriction made or imposed whether before or after the passing of this Act shall be of no force or effect.

(3) The provisions of this section shall not apply to any reasonable term or condition as to the position in any room or other part of a building of any fittings required for the use of any form of heat light power or energy.

(4) The provisions of this section shall not apply to any part of the undermentioned premises which was occupied by any tenant of the council of the metropolitan borough of Stepney under an agreement subsisting on the thirty-first day of December one thousand nine hundred and thirty-two so long as such tenancy continues (that is to say):—

Three blocks (Nos. 1 3 and 11) of the dwellings erected under the Metropolitan Borough of Stepney Limehouse Fields Improvement Scheme;

One block of dwellings erected in Narrow Street Limehouse; and

One block of dwellings erected in Chivers Court Limehouse.

A.D. 1933.
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(5) The provisions of this section shall apply to any dwelling-houses owned by the Company and occupied by workmen whether employed by the Company or not as if the Company were a housing authority within the meaning of this Act.

Costs of
Act.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may be paid in whole or in part out of revenue.

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